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SANDIP UNIVERSITY
UGC Recognised
Under Section 2(f) & 12(B) of UGC

Internal complaint Policy

CAMPUS
Mahiravani, Trimbak Road,
Nashik, Maharashtra,422213

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INTERNAL COMPLAINT COMMITTEE (ICC)/ PREVENTION OF SEXUAL HARASSMENT COMMITTEE

1. PREAMBLE

Sandip University, Nashik, is committed to ensuring a safe, respectful, and harassment-free environment for all members of its community. This policy is in accordance with The Sexual Harassment of Women at Workplace (Prevention, Prohibition, and Redressal) Act, 2013 (POSH Act) and applies to all employees, students, and visitors on campus.

The university's Internal Complaint Committee (ICC) is established to prevent, prohibit, and redress complaints related to sexual harassment. This policy outlines the university's framework for addressing complaints and promoting gender equity on campus.

2. OBJECTIVE

The objective of the ICC is to:

- Prevent sexual harassment in the workplace and campus environment.
- Promote gender-sensitive and inclusive conduct.
- Address and resolve complaints of sexual harassment and related grievances in a fair and just manner.
- Ensure a healthy, secure, and conducive environment for all staff, faculty, and students.

3. DEFINITIONS

1. **Sexual Harassment**: Includes any unwelcome sexually determined behavior (whether directly or by implication) as defined under the POSH Act, such as:
   - Physical contact and advances.
   - A demand or request for sexual favors.
   - Sexually colored remarks.
   - Showing pornography.
   - Any other unwelcome physical, verbal, or non-verbal conduct of a sexual nature.
2. **Aggrieved Woman**: Refers to any woman, whether employed or a student, who alleges to have faced harassment.

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3. **Respondent**: Refers to a person against whom a complaint of sexual harassment is made.

4. SCOPE

This policy applies to:

- All employees (teaching and non-teaching staff), students, contractual workers, and visitors of Sandip University, Nashik.
- Incidents occurring within the university premises, during university-related activities off-campus, or any official event organized by the university.

5. INTERNAL COMPLAINT COMMITTEE (ICC)

5.1 Composition of ICC:

The *Internal Complaint Committee* will comprise:

1. **Presiding Officer**: A senior woman faculty member of the university.
2. **Members**: At least two faculty members or employees, with a minimum of one woman.
3. **External Member**: An external member from an NGO or association committed to women's rights or a legal expert.

At least 50% of the members of the ICC will be women to ensure gender representation and sensitivity.

5.2 Responsibilities of ICC:

- Address and resolve complaints of sexual harassment in a timely, fair, and confidential manner.
- Recommend preventive actions to ensure gender equality and safety on campus.
- Conduct awareness and training programs for students, faculty, and staff on issues of sexual harassment.

6. PROCEDURE FOR FILING A COMPLAINT

An aggrieved person may submit a written complaint to the ICC within **three months** from the date of the incident or the last incident in case of a series of incidents. The complaint can be submitted by email or in hard copy.

1. **Assistance in Filing**: In case the aggrieved woman is unable to file the complaint on her own, a colleague, friend, relative, or counselor can assist her in filing the complaint.

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2. **Confidentiality**: The identity of the aggrieved woman, respondent, witnesses, and th details of the complaint must be kept confidential by all parties involved.

7. REDRESSAL PROCEDURE

1. **Preliminary Assessment**: Upon receiving the complaint, the ICC will conduct preliminary assessment to determine whether the case falls under the purview o sexual harassment.
2. **Inquiry**: If prima facie evidence exists, the ICC will initiate a formal inquiry. Bot the complainant and respondent will be given opportunities to present their cas including witnesses and supporting documents.
3. **Timeline**: The inquiry should be completed within **90 days** of receiving th complaint.
4. **Interim Relief**: During the inquiry, the ICC may recommend interim measures t ensure the complainant's safety and well-being, such as changing class schedules o work assignments, granting leave, or restricting contact between the parties.
5. **Rights of the Respondent**: The respondent will be informed of the complaint an provided an opportunity to respond.
6. **Documentation**: A report with findings and recommendations will be submitted t the university's management within **10 days** of the inquiry's conclusion.

8. ACTION AND PENALTIES

1. **ICC Recommendations**: Based on the findings, the ICC will recommend appropria actions, which may include:
   - Written apology from the respondent.
   - Warning or reprimand.
   - Suspension or termination of employment or enrolment.
   - Counselling or attendance in gender-sensitivity programs.
   - Compensation for the aggrieved person.
2. **Management's Role**: The University's management will act upon the ICC recommendations within **60 days** of receiving the inquiry report.

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9. APPEAL PROCESS

Either the complainant or the respondent may appeal the ICC's decision to an appellate authority as per the provisions of the POSH Act within **90 days** from the date of the final recommendation.

10. AWARENESS AND TRAINING

- Sandip University will conduct regular workshops and training programs to sensitize employees and students on sexual harassment and gender issues.
- The university will display information regarding the ICC and the complaint process in prominent places on campus.

11. CONFIDENTIALITY AND NON-RETALIATION

- All matters related to complaints of sexual harassment are confidential. Any breach of confidentiality by ICC members, the complainant, respondent, or witnesses may result in disciplinary action.
- Retaliation against any person for reporting or participating in an investigation under this policy is strictly prohibited.

12. FALSE COMPLAINTS

If the ICC finds that the complaint was malicious or knowingly false, appropriate disciplinary action may be taken against the complainant, while ensuring that this does not discourage genuine complaints.

13. REVIEW AND AMENDMENT

This policy will be reviewed periodically to ensure compliance with legal standards and the evolving needs of the university community. Amendments will be made as necessary in line with statutory requirements.

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